

Awadh Narayan Mishra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 September 2013 · WRIT - C No. 51644 of 2013 · **Writ disposed of; relegated to clause 6.5 complaint.**

HEADNOTE

A writ seeking to quash an Executive Engineer's demand notice for disputed electricity dues was disposed of without examining the bill. The Division Bench held that the consumer's remedy was a complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, who was to consider it and communicate a decision.

FACTUAL SUMMARY

Awadh Narayan Mishra filed a writ petition to quash a notice dated 10 July 2013 issued by the Executive Engineer, Electricity Department, claiming outstanding dues of Rs 53,962. He disputed the correctness of the bill. Counsel for the petitioner was heard; Sri Mahboob Ahmad appeared for the respondents. The Court did not examine the demand on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — complaint before Executive Engineer

HOLDING

Where a consumer disputes the correctness of an electricity bill and seeks in a writ petition to quash a demand notice for outstanding dues, the available remedy is a complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, who shall consider the complaint, take an appropriate decision, and communicate it to the consumer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 10.7.2013 AND THE CLAIMED DUES OF RS 53,962

The Court did not examine the bill on merits and relegated the petitioner to clause 6.5. ¶ 1